

Communicating the Outcome and Next Steps (Occupational Therapy)



1. In all Cases

Having made a determination about eligibility, the Care Act requires that in all cases you must give the person (or their representative if they lack capacity) a written record, explaining:

- a. The overall eligibility determination (whether or not the person's overall needs meet the eligibility criteria as set out under the Care Act); and
- b. The rational for the decision.

It is important that the person understands the eligibility outcome and the reasons for it. To this end it should be provided in a format that is accessible to them.

If the outcome has been provided in a format that you know or suspect the person will not be able to understand you should:

- a. Consider any steps that you can take to support them to understand it (for example talking through the outcome over the telephone or summarising it in a simpler format); and
- b. Consider the duty to make an independent advocate available.

If an advocate is already involved they should be informed when the outcome has been provided to the person so that they can support them to understand it.

2. When the Overall Determination is 'Ineligible'

Where the overall eligibility determination is 'ineligible' there is no duty on the Local Authority to meet any needs that the person has.

When providing the written record of the ineligible determination you must:

- a. Explain the eligibility determination;
- b. Explain the rationale for the determination;
- c. Provide written information and advice about what can be done now to reduce the ineligible needs that the person has; and
- d. Provide written information and advice about what can be done to prevent or delay the development of eligible needs.

See: [Providing Information and Advice](#), which includes links to local and national resources.

See also: [Accessing another Prevention Service](#).

You should also consider:

- a. Any need for action under adult safeguarding procedures (for example, if the person is self-neglecting or unable to protect themselves from abuse or neglect from others); and
- b. Any need for action under children's safeguarding procedures (if a child is living in destitution they are a 'child in need' under the Children Act 1989).

See [Safeguarding Adults](#).

If you are concerned that an adult or child is in imminent danger from abuse or neglect, or that a criminal act has taken place you should contact the police by dialling 999.

2.1 Meeting Ineligible Needs

Under the Care Act the Local Authority has a power to meet needs that have not been deemed eligible, normally under the remit of preventing a crisis or longer term needs through a short term intervention. However, this power should not be used routinely or without authority and you should familiarise yourself with the local policy for meeting ineligible needs.

Where a decision is made to meet an ineligible need the arrangements to do should be in line with the meeting of eligible needs.

Where the outcome of the eligibility determination is 'ineligible' and the outcome is likely to have a detrimental impact on the prevention, reduction or delay of needs you should discuss this with your line manager.

In particular consideration should be given as to whether it is possible and appropriate to provide any equipment under the duty to prevent, reduce or delay needs.

3. When the Overall Determination is 'Eligible'

When providing the written record of the determination you must:

- a. Explain the eligibility determination;
- b. Explain the rationale for the determination;
- c. Where there are both eligible and ineligible needs, provide written information and advice about what can be done now to reduce any ineligible needs that the person has; and
- d. Where there are both eligible and ineligible needs, provide written information and advice about what can be done to prevent or delay the development of eligible needs.

Need to know

A person can still have some ineligible needs if they have an overall 'eligible' determination. The duty to meet needs only applies to those needs that have been deemed eligible.

Under the Care Act the Local Authority has a power to meet needs that have not been deemed eligible, normally under the remit of preventing a crisis or longer term needs through a short term intervention. However, this power should not be used routinely or without authority and you

should familiarise yourself with the local policy for meeting ineligible needs.

Where a decision is made to meet an ineligible need the arrangements to do should be in line with the meeting of eligible needs.

4. Managing Disagreement about Eligibility

Under the Care Act the Local Authority is responsible for applying the criteria and making the final decision about eligibility. As such this is your responsibility as you are the Local Authority's representative.

There may be times when the person, their representative or another person disagrees with the eligibility determination you have made.

In this situation you should be open to reviewing the available evidence and your rationale to ensure that the determination is robust. You should be open and transparent about the evidence sources you have used and take steps to try and support the person to understand the determination you have made.

Where ongoing disagreement persists you should:

- a. Seek the support and advice of your line manager as required;
- b. Make a record of any difference of opinion in the formal record of assessment;
- c. Ensure the evidence upon which you have based your decision is robust;
- d. Make sure that the regard you have given to the views of the person (and others) and the impact on their Wellbeing is clear; and
- e. Make proportionate records of any conversations you have had to try and resolve the differences.

You must also make the person (or their representative) aware of their right to complain about the decision that has been made.

5. Next Steps (Eligible Needs)

Under the Care Act there are 3 steps that you must carry out following a determination of eligible need and notification of outcome.

These steps should be carried out prior to arranging for the provision of equipment or adaptation to meet needs.

Under each step you should ensure appropriate and proportionate recording to evidence:

- a. What has been explored or discussed;
- b. What has been agreed;
- c. The rationale/evidence for any agreement or decision (including the regard that has been given to the thoughts, wishes and feelings of the person); and
- d. Further action required (including any mechanism to monitor or review decisions made).

5.1 Where the person lacks capacity

If the person with Care and Support needs lacks capacity to engage in the 3 following steps you should discuss options with their representative and decisions should be made in their best interests.

See the [Mental Capacity Act 2005 Resource and Practice Toolkit](#), with guidance about assessing capacity and making best interest decisions.

5.2 Step 1: To consider with the person what can be done to meet the eligible needs they have

The primary purpose of step 1 is to establish the range of ways that the person could meet their eligible needs, beginning with ways that needs could be met from within their own available resources (for example independently, by a carer or within the local community). This is called a strengths based approach and, wherever possible, every conversation with a person about meeting needs should be from a strengths perspective. This means that before you talk about service solutions to the presenting issue you must support the person to explore whether there is:

- a. Anything within their own power that they can do to help themselves; or
- b. Anything within the power of their family, friends or community that they can use to help themselves.

Where there appears to be limited or inappropriate options to meet one or more eligible need from within the person's own networks you will need to provide information about the nature of available services that the Local Authority could provide to meet needs.

5.3 Step 2: Establish whether the person wants the Local Authority to meet their eligible needs

Step 1 will have identified a range of possible options to meet the eligible needs that the person has.

The person will need to decide (or, if they lack capacity a decision will need to be made in their best interests):

- a. Whether they want Occupational Therapy to arrange equipment or adaptations to meet their needs;
- b. Whether they want to arrange their own equipment or adaptations (in which case they will need to be given good information and advice about the equipment and adaptations required so as to make appropriate arrangements); or
- c. Whether they want to access alternative provision (for example health, housing or a community based provision).

Whether or not the person wants the Local Authority to meet their eligible needs will depend on a range of factors, and could include:

- a. The complexity of their need, including any fluctuation in need and the need for multiple Care and Support services;
- b. The person's ability to make and sustain alternative arrangements;
- c. The availability and sustainability of informal support options (e.g. carers and other informal networks);
- d. The availability of alternative support and services in the area (for example, a housing service that could meet the need may be available but have a long waiting list);
- e. The level of risk in their current situation, including the risk of abuse and neglect;
- f. The financial implications of services for the person; and
- g. The level of on-going support likely to review and monitor the person's needs or situation.

As long as the person has capacity to make this decision there is no duty for the Local Authority to make the arrangements. However, you should always consider whether there would be a benefit in making the arrangements when:

- a. The person has complex needs and consents to the Local Authority arranging the equipment or adaptation; or
- b. There are other circumstances in which you feel arranging the equipment or adaptation would be beneficial and the person consents.

See: [When the Person Intends to Make their Own Arrangements](#).

5.4 Step 3: If the person wants the Local Authority to meet their needs, establish whether they are Ordinarily Resident in the Local Authority area.

This is the stage when ordinary residence should be established under the Care Act. Following a determination of eligibility the Local Authority can only meet the eligible needs of a person if they are:

- a. Ordinarily resident in their area; or
- b. Present in the area and of no settled residence.

See what the Care Act says about [Ordinary Residence](#), including understanding what ordinary residence is, how/when to establish ordinary residence and how/when to meet the needs of those who are not ordinarily resident in the area.

tri.x has developed a tool to support decision making around ordinary residence.

See: [Ordinary Residence Decision Support Tool](#).

Also see the [Ordinary Residence Procedure](#).

If you are at all unclear about the ordinary residence of the person after accessing the available information in these procedures you should speak to your line manager.

5.5 Proceeding to arrange equipment

The Local Authority must meet needs whenever:

- a. The person has eligible needs that have been determined through an assessment; *and*
- b. The person is ordinarily resident in the Local Authority area (or present with no settled residence); *and*
- c. The person has confirmed (through the steps above) that they want the Local Authority to meet their needs; or
- d. The person lacks capacity to decide who should meet their needs and the Local Authority makes a best interest decision to this effect.

Need to Know

The duty to meet needs through equipment (where this is deemed the most appropriate and proportionate way to meet needs) applies in a care home regardless of the person's finances, *unless* the equipment required to meet needs is equipment that must be provided by the care home by law.

6. Notifying others of the Outcome

You should seek consent of the person to notify others of the outcome who:

- a. Have not been involved in the assessment; but
- b. Who have an interest in the outcome of the assessment; because
- c. They have a role in supporting the person to meet any on-going needs.

Examples of people who you may need to notify include:

- a. A social work practitioner;
- b. A service provider;
- c. A reablement or rehabilitation service.

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